SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DR. PETER DASZAK, PH.D.,

Plaintiff,

-against-

ECOHEALTH ALLIANCE INC., STEVEN SHAPIRO, INDIVIDUALLY AND AS CHAIRMAN OF THE BOARD OF DIRECTORS OF ECOHEALTH ALLIANCE, INC., AND JULIET AGRANOFF, DR. FREDERICK BAUM III, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M. THYE, CARLOTA VOLLHARDT, STEVEN WILS, AND DR. LILIAN WU,

Defendants.

Index No.: 164611/2025

NOTICE OF MOTION

PLEASE TAKE NOTICE that pursuant to the Rules 3211(a)(7) and 3211(a)(11) of the New York Civil Practice Law and Rules ("CPLR") and the New York Not-For-Profit Corporation Law § 720-a ("NY N-PCL"), that Defendants EcoHealth Alliance Inc. ("EHA"), Stephen Shaprio[1], Juliet Agranoff, Dr. Frederick Baum III, Joe Curry, Karen Denton, Ralph E. Gomory, Nancye Green, Nancy Griffin, Robert Hoguet, Charles Hirschler, Geoffrey Potter, Ellen Shedlarz, Lisa Silvershein, Jarret Stephens, Pamela M. Thye, Carlota Vollhardt, Steven Wils, and Dr. Lillian Wu (collectively "Defendants"), through their undersigned counsel, respectfully move this Court, **in the Motion Submission Part, Room 130, 60 Centre Street, New York, NY, 10007 at 9:30 AM. on Wednesday, May 28, 2026**, or at a different time and location to be determined

[1] The Verified Complaint incorrectly names Defendant Shapiro as "Steven Shapiro."

by the Court, for an Order granting Defendants' Motion to Dismiss Plaintiff's Verified Complaint. See NYSCEF Doc. Nos.1-5.

PLEASE TAKE FURTHER NOTICE that, in support of this instant motion, Defendants will rely on the accompanying Affirmation of Joseph Anci, Esq. with related exhibits and the Memorandum of Law in Support of Defendants' Motion to Dismiss.

PLEASE TAKE FURTHER NOTICE, that pursuant the parties' Briefing Schedule Stipulation dated March 26, 2026, Plaintiff's Opposition to Defendants' Motion will be due on or before May 4, 2026, and Defendants' Reply will be due on or before May 21, 2026. See NYSCEF Doc. No. 41.

DATED: April 14, 2026
New York, New York

Respectfully submitted,

JACKSON LEWIS P.C.

/s/ Joseph Anci
Joseph Anci
Corrine Shea
Attorneys for Defendants

cc: Joseph E. Gasperetti, Attorney for Plaintiff (via ECF and email)